

TENTATIVE RULINGS

Date: May 21, 2026

#	Case Name	Tentative
2.	30-2025-01492997 Dymek vs. Ford Motor Company	1. Case Management Conference 2. Demurrer to Complaint Defendant, Ford Motor Company’s demurrer directed at the Complaint of Plaintiff Kristin Dymek (ROA 28) set for hearing on May 21, 2026, is MOOT. A First Amended Complaint was filed on May 8, 2026. (ROA 40). When a plaintiff files an amended complaint after a demurrer or motion directed to the original complaint is filed, but before they are decided, the demurrer or motion becomes moot. (<i>JKC3H8 v. Colton</i> (2013) 221 Cal.App.4th 468, 477; <i>State Compensation Ins. Fund v. Superior Court</i> (2010) 184 Cal.App.4th 1124, 1130-1131; <i>Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.</i> (2004) 122 Cal.App.4th 1049, 1054. “[A] plaintiff has a right to amend his or her pleading at any time before a responsive pleading is filed and even after a responsive pleading is filed up to the time of the hearing on the demurrer.” (<i>Barton v. Khan</i> (2007) 157 Cal.App.4th 1216, 1221 [finding that trial court erred in refusing to accept the amended complaint for filing and explaining that the clerk should have accepted amended complaint filed three days before hearing on a demurrer to complaint, and had clerk done so, the hearing on the demurrer would have been taken off calendar].) Accordingly, the hearing on May 21, 2026, is VACATED. The <u>Case Management Conference</u> is CONTINUED to July 16, 2026 at 9:00 am in Department C34. The Court orders clerk to give notice.
3.	30-2025-01507320 Jin vs. Newport Beach Police Department	1. Case Management Conference 2. Demurrer to Complaint Defendant Newport Beach Police Department (“Department”), moves the Court for an Order sustaining its Demurrer to Plaintiff Chun Jin’s (“Plaintiff”) Complaint. Notably, all papers opposing a motion “shall be filed with the court and a copy served on each party at least nine court days” before the hearing. [Code Civ. Proc. § 1005(b).] The failure to oppose a demurrer may be construed as having abandoned the claims. [See <i>Herzberg v. County of Plumas</i> (2005) 133 Cal. App. 4th 1, 20 --“Plaintiffs did not oppose the County's demurrer to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiffs to have abandoned the issue”.] In addition, it is axiomatic the failure to challenge a contention in a brief results in the concession of that argument. [<i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal.App.4th 562, 566--“By failing to argue the contrary, plaintiffs concede this issue”; <i>Westside Center Associates v. Safeway Stores 23, Inc.</i> (1996) 42 Cal.App.4th 507, 529--“failure to address

		the threshold question ... effectively concedes that issue and renders its remaining arguments moot”; <i>Glendale Redevelopment Agency v. Parks</i> (1993) 18 Cal.App.4th 1409, 1424--issue is impliedly conceded by failing to address it.] Here, no opposition to the demurrer has been filed; therefore, the Court deems the motion unopposed and construes the failure to oppose the demurrer as an abandonment of Plaintiffs’ claims. While the Court notes Plaintiff is in Pro Per, Pro Pers must abide by the Code of Civil Procedure and Cal. Rules of Court: (See <i>Gamet v. Blanchard</i> (2001) 91 Cal.App.4th 1276, 1284 [“pro per litigants are not entitled to special exemptions from the California Rules of Court or Code of Civil Procedure”].) Moreover, the fact that plaintiff is in pro per does not afford him special treatment. [<i>Nwosu v. Uba</i> (2004) 122 Cal.App.4th 1229, 1246-1247.] Therefore, the unopposed demurrer to the Complaint is SUSTAINED in its entirety with <u>20 days leave to amend</u>. Defendant to give notice.
5.	30-2025-01498594 Law vs. Nabati	1. Case Management Conference 2. Demurrer to Complaint Defendant Brian Gregory Hopkins (“Hopkins”) demurs to the first, fourth and sixth causes of action in Plaintiff Deanna Law’s (“Plaintiff”) Complaint. <u>Fourth Cause of Action for Breach of Written Contract</u> Hopkins demurs to the fourth cause of action for breach of written contract on the grounds that the Complaint does not plead a written contract to which Hopkins is a party. “To state a cause of action for breach of contract, a party must plead the existence of a contract, his or her performance of the contract or excuse for nonperformance, the defendant’s breach and resulting damage.” (<i>Harris v. Rudin, Richman & Appel</i> (1999) 74 Cal.App.4th 299, 307.) Pursuant to Civil Code section 1550, the elements of a contract include: (1) Parties capable of contracting; (2) Their consent; (3) A lawful object; and (4) A sufficient cause or consideration. (Civ. Code, §1550.) Exhibit A to the Complaint is the purported written contract. The alleged contract is not executed by Hopkins, but appears to have been written by Hopkins’ co-defendant, Michael Nabati. The contract references Hopkins as Nabati’s agent and, additionally, refers to work that “we” will perform for Plaintiff. (Compl., Exh. A.) Viewing the writing as a whole, it appears that “we” refers to Nabati and Hopkins. The general allegations of the Complaint plead that Hopkins and Nabati were in a joint venture for the purpose of engaging in a “fix and flip” of the property at issue in this case. (Compl. ¶ 9.) “A joint venture has been defined in various ways, but most frequently perhaps as an association of two or more persons who combine their property, skill or knowledge to carry out a single business enterprise for profit.” (<i>Holtz v. United Plumbing and Heating Co.</i> (1957) 49 Cal.2d 501, 506.) “The incidents of a joint venture are in all important respects the same as those of a partnership. One such incident of partnership is that all partners are jointly and severally liable for